

## COMPANION TO THE REPORT “CHARITIES (JERSEY) LAW 2014 IN L4”

## Reading L4

## Annotated excerpts from the Charities (Jersey) Law 2014 encoding

Legalese · prepared for CALC 2026, Singapore · 15 July 2026<sup>1</sup>

The report you have in hand describes *what we found* when we rewrote the Charities (Jersey) Law 2014 in L4 — twelve files, about 12,800 lines, 754 machine-checked assertions. This companion shows you *what the encoding actually looks like*, seven excerpts long, from the shared vocabulary through the charity test to the worked examples that run. Each L4 construct gets a sidebar at its first appearance. The promise made in the report holds here too: to read rules a machine can check, you have to understand a little logic — not much, but some. These ten sidebars are that “little.”

## Excerpt 1 — The cast, declared once

Every Part file shares two vocabularies: *who* the Law addresses and *what acts* it regulates. They are declared once, in a common file.

charities-common.l4, lines 1–81 (abridged)

```
§ `Charities (Jersey) Law 2014 - Shared vocabulary (Actor, Action)`

-- SHARED VOCABULARY for the Charities (Jersey) Law 2014 corpus.
-- Source: Charities (Jersey) Law 2014 (L.41/2014), Official Consolidated
-- Version, showing the law from 16 October 2025 to Current.
-- Hoisted here once so each Part file can IMPORT this file rather than
-- re-declaring them.

DECLARE Actor IS ONE OF
Commissioner      -- the Jersey Charity Commissioner (Art 3)
Minister          -- the Minister for External Relations (Art 1)
States            -- the States of Jersey (Regulations)
Court             -- the Royal Court (Arts 14, 20, 35)
Tribunal          -- the Charity Tribunal (Art 32)
Charity           -- a registered charity (Arts 13, 19, 21, 23)
Applicant         -- an entity applying for registration (Art 11)
Governor          -- a governor of a registered charity (Arts 18, 19)
Person            -- any other person (Arts 21, 26, 29)
-- [...] three more: AttorneyGeneral, Comptroller, JFSC

DECLARE Action IS ONE OF
`publish and maintain guidance on the charity test`      -- Art 5(4)
`consult before issuing or amending guidance`           -- Art 5(6)(a)
`send an annual return`                                  -- Art 13(7)
`make a disqualification order`                          -- Art 20(4)
`refer to the entity as a Jersey charity`                -- Art 23(1), (2)
-- [...] thirty-odd more, one per operative act in the Law
```

## Sidebar 1 · Files, sections, comments — the file has the Law’s shape

A § mark opens a section, §§ a subsection: the code is organised the way the Law is, Part by Part, Article by Article. Anything after – is a *comment* — for human readers only, invisible to the machine. The corpus uses comments the way a drafter uses marginal notes: sources, cross-references, and flags for interpretation calls. **IMPORT** pulls one file’s vocabulary into another, so twelve Part files share one cast list.

## Sidebar 2 · Closed lists — DECLARE ... IS ONE OF

This declares an *enumeration*: an **Actor** is exactly one of the listed alternatives, and the machine will reject any actor not on the list — the same discipline as a defined term of the form “means one of the following.” Note the backticks: ‘send an annual return’ is a single *name*, and a name may be a whole statutory phrase. This is the trick that lets L4 speak the statute’s own language rather than sndAnnRet. Names without spaces (**Commissioner**) need no backticks.

<sup>1</sup>Prepared with AI drafting assistance; all excerpts are drawn verbatim from the corpus files and their locations are cited. Elisions are marked [ . . . ]; a few very long statutory strings are shortened the same way. Nothing else has been altered.

## Excerpt 2 — The facts a question turns on

Part 3 is the charity test. Before the test can be written down, the encoding declares *what a purpose is* and *what facts about a candidate entity matter*. Every field name cites its Article.

part-3-charity-test.l4, lines 62–116 and 253–274 (abridged)

```

§§ `Article 6(1) and 6(2) – the charitable purposes`

-- A PURPOSE is the unit Article 5(1)(a) quantifies over. Each purpose carries
-- the Art 6(1) heads (a)–(p) it is said to fall within – CHECKBOX flags, not
-- an enum: Art 6(1)(p) ("analogous") and Art 6(2)(f) both contemplate a
-- purpose engaging more than one head.
DECLARE CharitablePurpose HAS
  description
    `(a) the prevention or relief of poverty`           IS A STRING
    `(b) the advancement of education`                 IS A BOOLEAN
    `(c) the advancement of religion`                   IS A BOOLEAN
  -- [...] heads (d) through (p), one field each
  -- Article 6(2)(c) – GATES head (h): "'sport' means sport that involves
  -- physical skill and exertion".
  `(2)(c) the sport involves physical skill and exertion` IS A BOOLEAN
  -- [...] the other Article 6(2) qualifications
  -- Article 5(1)(a)(ii)
  `is purely ancillary or incidental to any of the entity's charitable purposes` IS A BOOLEAN
  -- Article 6(5) – the political-purpose override.
  `(5) is the purpose of advancing a political party or promoting a candidate for election to any office
  ⇨ [...]` IS A BOOLEAN

§§ `Article 7 – public benefit`

-- The entity under test. It carries its LIST of purposes, and the
-- Art 5(1)(b) / Art 5(2) / Art 7 facts.
DECLARE CandidateCharity HAS
  entity
    IS AN Entity
  purposes
    IS A LIST OF CharitablePurpose
  `in giving effect to those purposes, it provides (or, in the case of an applicant, provides or intends to
  ⇨ provide) public benefit in Jersey or elsewhere to a reasonable degree` IS A BOOLEAN
  `the entity benefits only one particular natural person or a group of identified natural persons` IS A
  ⇨ BOOLEAN
  `its constitution expressly permits its activities to be directed or otherwise controlled by, or any of its
  ⇨ governors to be, a person of the following description, acting in that capacity` IS A BOOLEAN
  `(2)(a) a Minister` IS A BOOLEAN
  `(2)(b) a member of the States Assembly` IS A BOOLEAN
  `(2)(c) any equivalent of such a person in another jurisdiction` IS A BOOLEAN
  `an Order under Article 5(3) disapplies paragraph (2) in relation to this entity` IS A BOOLEAN

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### Sidebar 3 · Records — DECLARE ... HAS

Where **IS ONE OF** makes a closed list, **HAS** makes a *record*: a bundle of named facts that travel together. Each field is typed — **IS A BOOLEAN** (a yes/no fact), **IS A STRING** (text), **IS A LIST OF** (zero or more of something). The record is the questionnaire the Law implicitly asks about every candidate: writing it out *is* the analysis. Notice the design decision recorded in the comment — checkbox flags rather than a closed list, because the statute itself lets one purpose engage several heads. The type system is where such interpretation calls become visible and reviewable.

## Excerpt 3 — A defined term with a blank in it

With the record declared, the encoding defines terms that take a purpose and answer yes or no. Here is head (h), which Article 6(2)(c) *gates*, and the political-purpose override of Article 6(5).

part-3-charity-test.l4, lines 140–147 and 213–229 (abridged)

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-- A GATE, not an extension: head (h) counts only for sport of the defined kind.
GIVEN p IS A CharitablePurpose
GIVETH A BOOLEAN
  `head (h) as gated by Article 6(2)(c)` p MEANS
    "(h) the advancement of public participation in sport;"

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... p's `(h) the advancement of public participation in sport`
AND "(2)(c) in paragraph (1)(h), 'sport' means sport that involves physical skill and exertion;"
... p's `(2)(c) the sport involves physical skill and exertion`

§§ `Article 6(5) – the political-purpose override, which fires at BOTH gates`

-- Two separate subtractions, because the statute makes two. The second is the
-- anti-laundering limb: without it, a party-political purpose could be dressed
-- up as "merely incidental" to a charitable one and slip through Art 5(1)(a)(ii).

GIVEN p IS A CharitablePurpose
GIVETH A BOOLEAN
`is a charitable purpose` p MEANS
  `falls within a head of Article 6(1)` p
AND "(5) The purpose of advancing a political party or promoting a candidate for election to any office
  ⇨ [...] is neither a charitable purpose [...]"
... NOT p's `(5) is the purpose of advancing a political party or promoting a candidate for election to any
  ⇨ office [...]"

```

#### Sidebar 4 · GIVEN / GIVETH / MEANS — definitions that compute

**GIVEN p IS A CharitablePurpose** introduces the cast of this definition: **p** stands for whichever purpose we are examining — the drafter's "a purpose ... the purpose," made explicit. (A logician would call **p** a *variable*.) **GIVETH A BOOLEAN** declares what kind of answer the term gives. **MEANS** then defines the term — and the machine holds you to the definition. **p's** reads a fact off the record: possessive, exactly as in English. Defined terms *call* other defined terms ('**is a charitable purpose**' uses '**falls within a head of Article 6(1)**'), so the dependency structure of the Law becomes explicit and navigable.

#### Sidebar 5 · The statute rides along — inert strings, .. and ...

The quoted passages are the Law's own words, carried *inline* as inert operands: "(h) the advancement of public participation in sport;" contributes nothing to the computation — it is there so that the code and the statute can be read side by side, line against line. The glue is deliberately quiet: `..` joins alternatives (an OR), `...` joins requirements (an AND), and *indentation is the bracketing*, doing the work that sub-paragraph structure does in the statute. This one-place-per-provision discipline is what the literature calls *isomorphism*: every Article lives at exactly one place in the code, so amendments land in one place too.

## Excerpt 4 — The whole test in four lines

Article 5 assembles the test: a positive limb quantified over *all* the entity's purposes, minus a government-control knock-out, which is itself subject to Ministerial disapplication.

part-3-charity-test.l4, lines 305–352 (abridged)

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§§ `Article 5(1) – the positive test`

GIVEN c IS A CandidateCharity
GIVETH A BOOLEAN
`(a) – all of its purposes are charitable or purely ancillary` c MEANS
  "(a) all of its purposes are - (i) charitable purposes, or (ii) purposes that are purely ancillary or
  ⇨ incidental to any of its charitable purposes; and"
... all `is charitable, or purely ancillary or incidental to a charitable purpose` (c's purposes)

GIVEN c IS A CandidateCharity
GIVETH A BOOLEAN
`Article 5(1) – the positive test` c MEANS
  "(1) An entity meets the charity test if -"
  ... `(a) – all of its purposes are charitable or purely ancillary` c
  AND `(b) – provides public benefit to a reasonable degree` c

§§ `Article 5(2) and 5(3) – the government-control knock-out, and its disapplication`

-- Article 5(3) is a defeater on the defeater: "The Minister may by Order
-- disapply paragraph (2) [...]". So the knock-out BITES only where no such
-- Order applies.

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GIVEN c IS A CandidateCharity
GIVETH A BOOLEAN
`the Article 5(2) knock-out bites` c MEANS
  `Article 5(2) – constitution expressly permits government direction or governorship` c
  AND "(3) The Minister may by Order disapply paragraph (2) in relation to any entity or description of entity
    ⇨ specified in the Order."
  ... NOT c's `an Order under Article 5(3) disapplies paragraph (2) in relation to this entity`

§§ `Article 5 – MEETS THE CHARITY TEST`

-- The whole of Part 3 in four lines: the positive test, minus the knock-out.
GIVEN c IS A CandidateCharity
GIVETH A BOOLEAN
`meets the charity test` c MEANS
  `Article 5(1) – the positive test` c
  AND NOT `the Article 5(2) knock-out bites` c

```

### Sidebar 6 · Quantifying over a list — all

Article 5(1)(a) says “all of its purposes are ...” — and the code says the same: `all predicate (c's purposes)` asks the yes/no question of every purpose on the list and demands yes every time. One consequence the prose lets you walk past: `all` over an *empty* list is true — an entity with no purposes at all passes limb (a) “vacuously.” The encoding does not silently patch this; it flags the interpretation call in a comment and *tests* it (Excerpt 7), showing that limb (b) is what excludes the empty shell. Formalisation as a reading technique, in one worked example.

### Sidebar 7 · Defeaters — AND NOT

The statute’s “nevertheless does not meet that test, *despite* paragraph (1)” is a *defeater*: not a further limb of the test but a subtraction from it. In L4 that is exactly `AND NOT` — and because Article 5(3) lets the Minister disapply the knock-out, the encoding stacks a defeater on the defeater, again with `AND NOT`. The summit of Part 3 is then honestly four lines long: positive test, minus knock-out. When the structure of exceptions is this explicit, the burden-of-proof question — who must establish what — has nowhere to hide.

## Excerpt 5 — Duties: who must do what, by when

The charity test is *constitutive* — it computes a status. But Part 3 also *regulates*: it imposes duties about guidance. Note that these are not booleans; they have addressees and deadlines.

part-3-charity-test.l4, lines 356–396 (abridged)

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-- Deadlines: the statute says "within a reasonable time" (5(7)) and "as soon
-- as practicable" (5(8)) – it does NOT give a number. We use WITHIN 90 and
-- WITHIN 30 as REVIEWABLE PLACEHOLDERS for those open-textured standards,
-- and flag them here rather than burying the choice.

`Article 5(4) and 7(4) – the Commissioner's guidance duty` MEANS
  PARTY Commissioner MUST `publish and maintain guidance on the charity test` WITHIN 90

-- Article 5(6) to (8) – the consultation and laying chain. Each step is the
-- consequence of the last: consult, then publish a report, then provide both
-- to the Minister, who must then lay them before the States.
`Articles 5(6) to (8) – the consultation and laying chain` MEANS
  PARTY Commissioner MUST `consult before issuing or amending guidance` WITHIN 90
  HENCE PARTY Commissioner MUST `publish a report on the consultation` WITHIN 30
  HENCE PARTY Commissioner MUST `provide the guidance and report to the Minister` WITHIN 30
  HENCE PARTY Minister MUST `lay the guidance and report before the States` WITHIN 30

-- Article 7(2) – the two mandatory considerations, as duties on the determiner.
`Article 7(2) – the determiner's duty to have regard` MEANS
  PARTY Commissioner MUST `have regard to the comparison of benefit and disbenefit` WITHIN 30
  RAND
  PARTY Commissioner MUST `have regard to whether any condition on obtaining the benefit is unduly
  ⇨ restrictive` WITHIN 30

-- Article 7(3)(a) – a PROHIBITION on the determiner's reasoning, not on the
-- world: "must not presume any particular charitable purpose to be for the

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-- public benefit". SHANT is exactly right: performing the act is the breach.
`Article 7(3)(a) - no presumption of public benefit` MEANS
  PARTY Commissioner SHANT `presume a particular charitable purpose to be for the public benefit` WITHIN 30
```

### Sidebar 8 · The regulative layer — PARTY MUST ... WITHIN

A duty in L4 names its *addressee* (PARTY Commissioner), its *modality* (MUST, MAY, or SHANT — a prohibition where doing the act is the breach), the *act* (drawn from the Action list of Excerpt 1), and the *deadline* (WITHIN, in days). HENCE chains a consequence onto performance: consult, hence report, hence provide, hence lay — the statute's own sequence, executable. RAND runs two duties in parallel: both are owed. And where the statute says "within a reasonable time," the encoding must still pick a number to run — so it picks one loudly, flagging every such choice as a reviewable placeholder rather than burying it. What is "reasonable" remains, correctly, a question for the tribunal.

## Excerpt 6 — Breach, and what happens next

Part 7's information notices show the full deontic machinery: a duty, its follow-up on performance, and its consequence on failure — with the statutory excuse as a defeater on liability.

part-7-information.l4, lines 809–860 (abridged)

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-- Article 26(7), as the consequence of failing a requirement. "Without
-- reasonable excuse" is a DEFEATER on the liability: with the excuse, the
-- failure is not an offence, and the residual is FULFILLED rather than BREACH.
GIVEN n IS AN InformationNotice
GIVETH A DEONTIC Actor Part7Action
`Article 26(7) - the liability for contravening the requirement` n MEANS
  IF n's `the person has a reasonable excuse for the contravention`
  THEN FULFILLED
  ELSE BREACH BY Person BECAUSE "Article 26(7): a person who without reasonable excuse contravenes a
    ↳ requirement imposed on the person under paragraph (1) or (4) commits an offence and is liable to
    ↳ imprisonment for a term of 3 months and to a fine of level 3 on the standard scale."

-- THE ART 26 SPINE. Note the shape: Art 26(4) says (a) applies "if the
-- document is provided" and (b) "if the document is not provided". That is
-- HENCE / LEST on the Art 26(1)(a) duty - the statute's own branching, made
-- executable.
GIVEN n IS AN InformationNotice
GIVETH A DEONTIC Actor Part7Action
`Article 26 - the notice, the follow-up, and the liability` n MEANS
  IF `Article 26(1)(a) - a valid requirement to provide information or a document` n
  THEN PARTY Person MUST `provide the information or document required by the Article 26(1) notice`
    WITHIN n's `the time specified in the notice for compliance, in days`
    HENCE `Article 26(4)(a) - the duty to explain the document` n
    LEST `Article 26(7) - the liability for contravening the requirement` n
    RAND `Article 26(4)(b) - the duty to say where the document is` n
  ELSE IF `Article 26(1)(b) - a valid requirement to attend and answer questions` n
  THEN PARTY Person MUST `attend at the specified place and time and answer the specified questions`
    WITHIN n's `the time specified in the notice for compliance, in days`
    LEST `Article 26(7) - the liability for contravening the requirement` n
  ELSE FULFILLED
```

### Sidebar 9 · HENCE / LEST — the “or else” made explicit

Where HENCE says what follows performance, LEST says what follows *failure* — the statute's own “if the document is not provided,” as a branch. The result of the whole clause is itself a value of type DEONTIC: a little contract machine that, given a history of who did what when, lands in FULFILLED or in BREACH BY someone BECAUSE of a quoted provision. Drafting manuals ask whether it is sufficient merely to state a rule without stating its consequence; here the question answers itself, because a MUST with no LEST is visibly inert. Note also IF/THEN/ELSE selecting between duties, and the reasonable excuse handled as a defeater that converts would-be breach into FULFILLED.

## Excerpt 7 — Worked examples that run

Every definition above is exercised by named scenarios and machine-checked assertions — 754 across the corpus, re-checked on every edit. Here are three: the school that passes, the same school with a political purpose, and the empty shell that probes the vacuous-truth corner.

part-3-charity-test.l4, lines 576–699 (abridged)

```
-- A school with a gift shop: purposes all charitable-or-ancillary, public
-- benefit provided, no government control. MEETS THE TEST.
`Victoria College Trust` MEANS CandidateCharity WITH
  entity IS `Jersey Heritage Ltd`
  purposes IS LIST `the advancement of education`, `running a gift shop to fund the school`
  `in giving effect to those purposes, it provides [...] public benefit in Jersey or elsewhere to a reasonable
  ↳ degree` IS TRUE
  -- [...] the remaining seven fields, all FALSE

#ASSERT `Article 5(1) – the positive test` `Victoria College Trust`
#ASSERT NOT `the Article 5(2) knock-out bites` `Victoria College Trust`
#ASSERT `meets the charity test` `Victoria College Trust`

-- ONE bad purpose spoils the lot. Art 5(1)(a) says "ALL of its purposes" –
-- so the party-political purpose, however incidental it claims to be, fails
-- the entity.
`Victoria College Trust, but campaigning` MEANS CandidateCharity WITH
  purposes IS LIST `the advancement of education`, `running a gift shop to fund the school`, `campaigning for
  ↳ a political party (pleaded as merely incidental)`
  -- [...] all other fields as before

#ASSERT NOT `(a) – all of its purposes are charitable or purely ancillary` `Victoria College Trust, but
  ↳ campaigning`
#ASSERT NOT `meets the charity test` `Victoria College Trust, but campaigning`

$$ `The empty shell – the vacuous-truth corner of Article 5(1)(a)`

-- An entity with NO purposes satisfies Art 5(1)(a) VACUOUSLY ("all of its
-- purposes are charitable" – there are none to fail). It is Art 5(1)(b) that
-- must exclude it. The model shows the load-bearing limb clearly.
`the empty shell` MEANS CandidateCharity WITH
  purposes IS EMPTY
  `in giving effect to those purposes, it provides [...] public benefit [...]` IS FALSE
  -- [...] remaining fields FALSE

-- 5(1)(a) is VACUOUSLY satisfied...
#ASSERT `(a) – all of its purposes are charitable or purely ancillary` `the empty shell`
-- ...and 5(1)(b) is what does the excluding.
#ASSERT NOT `(b) – provides public benefit to a reasonable degree` `the empty shell`
#ASSERT NOT `meets the charity test` `the empty shell`

$$ `The guidance duties, exercised`

-- The Commissioner publishes on day 60, inside the 90-day placeholder window.
#TRACE `Article 5(4) and 7(4) – the Commissioner's guidance duty` AT 0 WITH
  PARTY Commissioner DOES `publish and maintain guidance on the charity test` AT 60
```

### Sidebar 10 · Scenarios and regression tests — WITH, #ASSERT, #TRACE

WITH builds a concrete instance of a record, field by field (IS TRUE, IS FALSE, IS LIST ..., IS EMPTY) — a named hypothetical, like the worked examples in guidance notes, except that these *run*. Each #ASSERT is a claim the machine re-checks every time any file is touched: change Article 6(5)'s encoding and the campaigning school's assertions fail immediately. This is the software habit of *regression testing* imported into drafting — each edge case someone once worried about stays worried about, forever, at zero marginal cost. #TRACE does the same for duties: it runs the deontic clock (DOES ... AT 60) and reports whether the story ends FULFILLED or in BREACH. The corpus carries 754 such checks; all pass.

Corpus: charities-jersey-2014/ — twelve .l4 files and a drafter-facing README; the 21-page report is the companion piece. To run the checks yourself: 14 check part-3-charity-test.l4 (typecheck) and 14 run part-3-charity-test.l4 (typecheck, then run every worked example). Excerpt line numbers refer to the files as of 14 July 2026.